

P O R T E R | S C O T T

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CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

05/05/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**OPPOSITION TO PLAINTIFF'S
MOTION TO DEEM ADMITTED,
COMPEL, AND FOR SANCTIONS**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Hearing Date: May 18, 2026

Time: 9:00 a.m.

Dept: 302

Judge: Joseph M. Quinn

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendant CSAA INSURANCE EXCHANGE (“Defendant”) hereby submits the following
2 in opposition to Plaintiff’s motion to deem admitted, compel, and for sanctions.

3 **I. INTRODUCTION**

4 Plaintiff’s current “motion to deem admitted, compel, and for sanctions,” i) was not properly
5 served; ii) is prejudicial to Defendants; iii) indisputably violates the stay of discovery imposed as a
6 matter of law by Defendants’ pending Anti-SLAPP motion; and iv) lacks substantial, or indeed any,
7 justification.

8 **II. FACTUAL BACKGROUND**

9 On April 9, 2026, Defendant’s counsel caused to be filed with the Court and served on
10 Plaintiff by Certified Mail and courtesy copy via email a copy of Defendant’s Special Motion to
11 Strike per Code Civ. Proc. § 425.16 (“Anti-SLAPP motion”). (*Declaration of Tyler J. O’Connell*
12 [hereinafter “*O’Connell Decl.*”], ¶ 2, **Ex. A** – *email serving Defendants’ Anti-SLAPP motion.*)

13 Defendant’s Anti-SLAPP motion is based on the nature of Plaintiff’s allegations as
14 contained in the original Complaint and in the First Amended Complaint (“FAC”). Plaintiff’s
15 allegations squarely target Defendant’s litigation conduct all from Plaintiff’s underlying personal
16 injury jury trial—which Plaintiff lost by defense verdict in April 2025. (*O’Connell Decl.* ¶ 3.)

17 Prior to filing the Anti-SLAPP motion, Defendant’s counsel informed Plaintiff in writing,
18 and on a phone call, of Defendant’s counsel’s intention of filing an Anti-SLAPP motion should
19 Plaintiff not withdraw the FAC, in its entirety—as the entirety of the purported legal theories in
20 Plaintiff’s FAC focus inextricably on Defendants’ protected litigation conduct. (*O’Connell Decl.* ¶
21 4.)

22 Plaintiff refused to withdraw his FAC, in writing and on two meet and confer phone calls.
23 And Defendant’s Anti-SLAPP motion was properly filed on April 9, 2026. (*O’Connell Decl.* ¶ 5.)

24 On April 22, 2026, weeks after Defendant’s Anti-SLAPP motion had been filed, Plaintiff
25 sent an email to Defendant’s counsel’s office purporting to serve further discovery requests and the
26 instant “motion to deem admitted, compel, and for sanctions.” (*O’Connell Decl.* ¶ 6, **Ex. B.**)

27 Included in Plaintiff’s April 22, 2026 email was a bevy of further discovery requests,
28 specifically a Sixth set of discovery. Heretofore none of Plaintiff’s written discovery requests have

1 been properly or consecutively numbered and Plaintiff has failed to serve his written discovery
2 requests—far beyond the number of requests allowed under the Code—with Code-compliant
3 supporting declarations to justify those requests being far beyond the number allowed under the
4 Code. (*O’Connell Decl.* ¶ 7.)

5 Plaintiff never provided proper notice of the hearing date for this “motion to deem admitted,
6 compel, and for sanctions,” and therefore the only way Defendant’s counsel was able to determine
7 the hearing date was by perusing the Court’s docket in this matter. (*O’Connell Decl.* ¶ 8.) Upon
8 review of the Court’s docket Defendants’ counsel determined the hearing for Plaintiff’s “motion to
9 deem admitted, compel, and for sanctions” was set for May 18, 2026. (*O’Connell Decl.* ¶ 9.)

10 Plaintiff has sent several emails and voicemails in this matter, threatening to report
11 Defendants’ counsel to the California State Bar, unless Defendants’ counsel “vacates Defendants’
12 Anti-SLAPP motion.” (*O’Connell Decl.* ¶ 10-11, Ex. C.)

13 **III. LEGAL ISSUES BARRING THIS MOTION**

14 Plaintiff asks this Court to violate California law and issue a discovery order deeming
15 matters admitted and compelling responses, despite Defendant’s pending Anti-SLAPP motion. The
16 defects in Plaintiff’s current motion are myriad. Suffice it to say, in the limited time available for
17 Defendant to prepare this Opposition (in light of Plaintiff’s failure to provide notice of this motion’s
18 hearing date), Defendant will concisely list those issues. *First*, Plaintiff provided insufficient notice
19 and service of this Motion. *Second*, Plaintiff’s insufficient notice of this motion substantially
20 prejudices Defendant. *Third*, Plaintiff cannot file discovery motions—or serve further written
21 discovery—in light of Defendant’s pending Anti-SLAPP motion.¹ *Fourth*, Plaintiff’s request for
22 sanctions is unjustified, and in fact, this Court should award Defendant its attorney’s fees for being
23 forced to oppose this meritless motion.

24 **A. Plaintiff Provided Insufficient Notice of Motion and Defective Service**

25 Under Code Civ. Proc. § 1005(a) “Written notice shall be given, as prescribed in
26 subdivisions (b) and (c), for the following motions:

27 (12) Motion ... for Leave to Amend pursuant to Section 585.5.

28 ¹ Plaintiff previously filed a similarly defective Motion for Leave to Amend the Pleadings, which was set for hearing
on April 30, 2026. That motion to amend the pleadings around Defendant’s pending Anti-SLAPP motion was DENIED
after a hearing.

1 (13) Any other proceeding under this code in which notice is required, and no other time or
2 method is prescribed by law or by court or judge.

3 (b) Unless otherwise ordered or specifically provided by law, all moving and supporting
4 papers shall be served and filed at least 16 court days before the hearing. ...and if the notice
5 is served by facsimile transmission, express mail, or another method of delivery providing
6 for overnight delivery, the required 16-day period of notice before the hearing shall be
7 increased by two calendar days.

8 Here, Plaintiff served the instant Motion on April 22, 2026, via email upon Defendants.
9 (*O'Connell Decl.* ¶ 6, **Ex. B.**) Subsequently, Plaintiff set this motion for hearing on May 18, 2026.

10 However, Plaintiff's original service documents did not list a hearing date at all, and Plaintiff
11 never served a follow-up version with the hearing date noted. Defendant was only made aware of
12 the pending hearing by retrieving the hearing information directly from the Court's docket. In short,
13 Plaintiff failed to provide notice of the hearing date, whatsoever. The motion must be denied.

14 **B. Plaintiff's Current Motion Substantially Prejudices Defendant**

15 Plaintiff's defective service, gamesmanship, and unsupportable effort to persist in filing
16 discovery motions, serving additional discovery despite the Anti-SLAPP motion pending, and even
17 attempt to amend the pleadings, all substantially prejudices Defendant. First, Defendant's Anti-
18 SLAPP motion is still pending. Plaintiff's current effort to serve burdensome, harassing, and
19 unjustified discovery while that Anti-SLAPP motion is pending, is prejudicial and seems designed
20 to consume Defendant's counsel's time, energy, and resources.

21 Second, Plaintiff has provided insufficient notice of this Motion (with no notice given of the
22 hearing date) creating a rush to the courthouse for Defendant to prepare and file an Opposition to a
23 motion that has absolutely zero merit.

24 Third, the motion does not even specify what discovery is requested of Defendant.
25 Moreover, Plaintiff's declaration fails to attach the alleged discovery requests as an exhibit, despite
26 claiming those requests are attached.

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1 **C. Plaintiff Cannot Serve Discovery or File Discovery Motions Given Defendant's**
2 **Pending Anti-SLAPP Motion**

3 California law is abundantly clear: once a Defendant files an Anti-SLAPP motion, Plaintiff
4 is precluded from engaging in discovery or filing discovery motions.

5 California's Anti-SLAPP statute, Code Civ. Proc. § 425.16, provides:

6 (g) All discovery proceedings in the action shall be stayed upon the filing of a notice
7 of motion made pursuant to this section. The stay of discovery shall remain in effect
8 until notice of entry of the order ruling on the motion. The court, on noticed motion
9 and for good cause shown, may order that specified discovery be conducted
10 notwithstanding this subdivision.

11 Indeed, “[a]s a general rule, discovery is stayed upon the filing of an anti-SLAPP motion. (§
12 425.16, subd. (g).) But the trial court may still “for good cause shown, ... order that specified
13 discovery be conducted.” (*Balla v. Hall* (2021) 59 Cal.App.5th 652, 692.) If a plaintiff seeks to
14 conduct discovery, leave of Court must be obtained and to do so, a plaintiff must show “good cause”
15 for the specific discovery sought. (*Ibid.*) The good cause must be “a showing that the specified
16 discovery is necessary for the plaintiff to oppose the [anti-SLAPP] motion and is tailored to that
17 end.” (*Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, 1125.)

18 Here, Plaintiff's service of written discovery—and this motion—clearly violates the
19 automatic stay of discovery rule. Indeed, Plaintiff does not even mention the pending Anti-SLAPP
20 motion in his moving papers. Moreover, Plaintiff has not even attempted to demonstrate the
21 requisite “good cause” requirement, in order to conduct any limited discovery. Plaintiff's less-than-
22 two-page memorandum in ostensible support of his “Motion for to Deem Admitted, Compel, and
23 for Sanctions,” appears to be a partial draft insofar as the “Application” section appears to be an
24 internal memo prompt, not legal analysis. (*Plf's Mtn*, MPA, p.3, lines 1-2.)

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1 **D. Plaintiff's Motion has not Been Filed with Substantial Justification and the Request for**
2 **Sanctions is Inappropriate and Unreasonable**

3 Plaintiff's Motion cannot prevail and his request for sanctions therein is wholly unjustified.
4 Furthermore, the amount of sanctions sought is unreasonable. First, Plaintiff is not an attorney and
5 therefore cannot obtain attorneys' fees in filing this motion—were it to have any merit (it does not).
6 Plaintiff's Declaration in support of this motion claims to have incurred 27.5 hours in preparation
7 of this motion, including 12 hours drafting the motion. However, the MPA in support of this motion
8 is less than 2-pages. This is not reasonable whatsoever. In reality, Plaintiff's motion is meritless and
9 the request for sanctions is legally unsupportable. Moreover, Plaintiff's abusive discovery tactics
10 (and this motion) have prejudiced Defendant and forced Defendant's counsel to prepare and file an
11 Opposition to this motion. Defendant therefore requests sanctions in the amount of **\$945.00**.
12 (*O'Connell Decl.* ¶ 11.)

13 **IV. CONCLUSION**

14 Defendant respectfully requests the Court deny Plaintiff's Motion for to Deem Admitted,
15 Compel, and for Sanctions. Defendant also requests the Court sanction Plaintiff for filing this
16 meritless motion.

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18 Dated: May 5, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____

Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On May 5, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S**
7 **MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS.**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Sacramento, California on May 5, 2026.

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23 *Serena Blithe*
24 Serena Blithe
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